

Asrfi Lal v. State of U.P.

Allahabad High Court · Division Bench · 7 July 2022 · Writ-C No. 14475 of 2022 · **Writ disposed; 6.8 objection liberty; coercive recovery stayed eight weeks.**

HEADNOTE

Writ against an electricity demand of Rs 6,00,032.38 was disposed of without any opinion on merits. The consumer was given four weeks to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005; if filed in time, respondent No.3 must decide it within the next four weeks after hearing. Coercive recovery on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Asrfi Lal petitioned the Allahabad High Court to quash a demand notice dated 10 September 2021 issued from the office of respondent No.3 for electricity dues of Rs 6,00,032.38, and to restrain the distribution licensee from recovering that sum by coercive measures. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

A writ challenging an electricity demand notice may be disposed of without merits adjudication by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within a stipulated period, directing time-bound disposal after hearing, and staying coercive recovery pending that objection. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8

The writ against the demand notice was disposed of by relegating the consumer to a Para 6.8 objection, without deciding the legality of the demand. ¶ 1

assessment-6.8-alternate-remedy

Challenge to the Rs 6,00,032.38 demand was not entertained on merits; Para 6.8 was treated as the proper forum. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

If the 6.8 objection is filed within four weeks, respondent No.3 must decide it within the next four weeks after hearing; coercive action is stayed for eight weeks or till disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE DEMAND NOTICE DATED 10.09.2021 FOR RS 6,00,032.38

Court expressly declined to express any opinion on the merits. ¶ 1